SOP: Use and Distribution of Disciplinary Action Forms

Purpose

To establish a consistent process for the distribution, completion, and approval of disciplinary action forms. These forms are controlled HR documents and are not to be freely distributed or completed without appropriate review.

Distribution of Forms

Blank disciplinary action forms shall be accessible to Regional Managers. Managers, Supervisors, and other personnel shall not be provided with blank disciplinary action forms. Forms shall not be stored in shared locations accessible to unauthorized personnel.

Role of the Regional Manager

Regional Managers are responsible for gathering facts and supporting documentation related to employee concerns. They are not required to diagnose situations or determine disciplinary action through disciplinary forms. Managers may submit information directly to HR with the Regional Manager copied. Regional Managers may request that HR prepare disciplinary documentation after reviewing the facts of a situation.

Completion of Forms

Disciplinary action forms shall only be completed after relevant facts have been gathered and reviewed. Human Resources must be consulted prior to the issuance of written disciplinary action. HR may prepare, review, revise, or approve disciplinary documentation before issuance. Failure to have Disciplinary Documentation reviewed, approved (by HR and Director of Operations), and submitted to HR **before** issuing to an Employee will not be deemed valid.

Performance Improvement Plans (PIPs)

A Regional Manager may not independently prescribe, develop, issue, or communicate a Performance Improvement Plan (PIP). Any PIP requires consultation with and approval from both Human Resources and the Director of Operations prior to implementation.

Documentation and Retention

Completed disciplinary action forms and supporting documentation must be submitted to Human Resources for retention in the employee personnel file.

Guiding Principle

1. Managers report concerns.
2. Regional Managers gather facts.
3. Human Resources determines the appropriate documentation and level of corrective action.
4. HR confirms diagnosis with Director of Operations
5. Subject employee receiving the write up will be able to verify the authenticity of the document by the HR/ Director of Operations sign off.

Please Note

- **RMs have access to a limited selection of Disciplinary Action forms.** If none of the available forms appropriately fits the incident, do not attempt to use an unsuitable form. Instead, contact HR for guidance on the appropriate documentation and next steps.

- **Responsibility to Report on Behalf of Your Team:** If a Manager emails you to report a concern or provide information about an issue, forward the email to HR regardless of whether you personally agree with or endorse the concern. Regional Managers should not restrict, filter, or discourage an employee's reported concerns. When forwarding the email, note that no warning is being issued at that time, but the concern is being submitted to HR for review and documentation as appropriate.

- **When in doubt, do not make Assumptions.** Contact HR for guidance before taking action. Certain states have different laws that must be factored into disciplinary action. Laws change every day; it is best practice to make sure do not issue something that is not legally sound and compromises the Company (especially in writing).